

**SUBSTITUTE FOR
SENATE BILL NO. 757**

A bill to regulate addictive feeds on addictive internet-based services or applications; to regulate covered operators; to provide for parental consent; to prohibit certain acts related to addictive internet-based services or applications used by minors; to provide for the powers and duties of certain state governmental officers and entities; to require the promulgation of rules; and to prescribe civil sanctions and provide remedies.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. This act may be cited as the "stop addictive feeds
2 exploitation for kids act".

3 Sec. 3. As used in this act:

4 (a) "Addictive feed" means, except as otherwise provided in
5 section 5, an internet website, online service, online application,



1 or mobile application, or a portion thereof, in which multiple
2 pieces of media generated or shared by users of the internet
3 website, online service, online application, or mobile application,
4 either concurrently or sequentially, are recommended, selected, or
5 prioritized for display to a user based, in whole or in part, on
6 information associated with the user or the user's device.

7 (b) "Addictive internet-based service or application" means an
8 internet website, online service, online application, or mobile
9 application that offers or provides a user an addictive feed as a
10 significant part of the services provided by that internet website,
11 online service, online application, or mobile application.

12 Addictive internet-based service or application does not include
13 any of the following:

14 (i) An internet website, online service, online application, or
15 mobile application that operates a feed for the primary purpose of
16 cloud storage.

17 (ii) An internet website, online service, online application,
18 or mobile application for which interactions between users are
19 limited to commercial transactions or to consumer reviews of
20 products, sellers, services, events, or places, or any combination
21 thereof.

22 (c) "Covered minor" means a resident of this state who is a
23 user of an addictive internet-based service or application that a
24 covered operator has actual knowledge or knowledge fairly implied
25 on the basis of objective circumstances is a minor.

26 (d) "Covered operator" means a person that operates or
27 provides an addictive internet-based service or application.

28 (e) "Media" means text, an image, or a video.

29 (f) "Minor" means an individual who is less than 18 years of



age and who is not emancipated by court order under section 4 of 1968 PA 293, MCL 722.4.

(g) "Online service" means a service, product, or feature that is accessible to the public via the internet. Online service includes an internet website or application. Online service does not include any of the following:

(i) A telecommunications service as that term is defined in 47 USC 153.

(ii) A broadband internet access service as that term is defined in 47 CFR 8.1.

(iii) The sale, delivery, or use of a physical device.

(h) "Parent" means a parent or legal guardian of a minor.

(i) "Person" means an individual or a partnership, corporation, limited liability company, association, governmental entity, or other legal entity.

(j) "User" means an individual who uses an addictive internet-based service or application and is not acting as a covered operator, or an agent or affiliate of a covered operator.

Sec. 5. A feed is not considered an addictive feed if the media is displayed to the user based solely on 1 or more of the following conditions:

(a) The recommendation, prioritization, or selection of media is based on user-selected privacy or accessibility settings or technical information concerning a user's device.

(b) A user expressly and unambiguously requested any of the following be recommended, prioritized, or selected for display:

(i) A specific media.

(ii) Media by a specific author, creator, or poster that the user has subscribed to.



1 (iii) Media shared by other users in a page or group that the
2 user has subscribed to.

3 (c) The media is a part of a direct and private communication.

4 (d) The media is recommended, selected, or prioritized only in
5 response to a specific search inquiry by a user.

6 (e) The media that is recommended, selected, or prioritized
7 for display is next in a preexisting sequence from the same author,
8 creator, poster, or source of that media.

9 (f) The recommendation, prioritization, or selection of media
10 is necessary to comply with this act or any rules promulgated under
11 this act.

12 (g) The recommendation, prioritization, or selection of media
13 is primarily prioritized based on user survey or user ratings data.

14 Sec. 7. (1) Subject to subsection (2), a covered operator
15 shall not provide an addictive feed to a user.

16 (2) A covered operator may provide an addictive feed to a user
17 if 1 of the following applies:

18 (a) The covered operator has used commercially reasonable and
19 technically feasible methods to determine that the covered user is
20 not a minor.

21 (b) The covered operator has obtained verifiable parental
22 consent to provide an addictive feed to a covered minor.

23 Sec. 9. A covered operator shall not send a notification
24 concerning an addictive feed to a covered minor between 10 p.m. and
25 6 a.m. and, on a weekday from September 1 to May 31, between 8 a.m.
26 and 4 p.m.

27 Sec. 11. (1) If a covered operator collects information to
28 determine the age of a user under section 7(2)(a), a covered
29 operator shall not use that information for any purpose other than



1 to determine the age of the user. A covered operator shall delete
2 any information collected to determine the age of a user under
3 section 7(2) (a) immediately after an attempt to determine the age
4 of the user, except if necessary to comply with any applicable
5 laws.

6 (2) A covered operator shall not use information that is
7 collected to obtain verifiable parental consent under section
8 7(2) (b) for any purpose other than to obtain verifiable parental
9 consent. A covered operator shall delete information collected to
10 obtain verifiable parental consent under section 7(2) (b)
11 immediately after an attempt to obtain verifiable parental consent,
12 except if necessary to comply with any applicable laws.

13 Sec. 13. (1) This act does not require a covered operator to
14 give a parent who grants verifiable parental consent under section
15 7(2) (b) any additional or special access to or control over the
16 data or accounts of the parent's child.

17 (2) A covered operator shall not withhold, degrade, lower the
18 quality, or increase the price of a product, service, or feature,
19 other than as necessary to comply with this act or rules
20 promulgated under this act, for a user because of an individual
21 availing the individual's self of the rights provided by this act
22 or due to any restrictions provided under this act.

23 (3) Verifiable parental consent under section 7(2) (b) does not
24 waive, release, limit, or serve as a defense to a claim that a
25 parent or a user who is a minor, or was a minor at the time of
26 using the addictive internet-based service or application, might
27 have against a covered operator regarding harm to the mental health
28 or well-being of the user.

29 Sec. 15. The attorney general shall promulgate rules to



1 implement this act under the administrative procedures act of 1969,
2 1969 PA 306, MCL 24.201 to 24.328. The rules must include, but are
3 not limited to, rules on the following:

4 (a) Commercially reasonable and technically feasible methods
5 to determine whether a user is a minor under section 7(2)(a).

6 (b) The methods of obtaining verifiable parental consent under
7 section 7(2)(b).

8 Sec. 17. (1) If a covered operator violates this act, the
9 attorney general may bring a civil action seeking 1 or more of the
10 following:

11 (a) A civil fine of not more than \$5,000.00 per violation.

12 (b) Actual damages.

13 (c) Injunctive or declaratory relief.

14 (d) Destruction of information obtained in violation of this
15 act.

16 (e) Any other relief the court considers appropriate.

17 (2) The attorney general shall maintain an internet website to
18 receive complaints, information, or referrals from the public about
19 a covered operator's compliance or noncompliance with this act. The
20 internet website must contain a form for the public to submit a
21 complaint, information, or referral under this subsection.